

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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LARHONDA BARRON and RODNEY HUNTER,

Plaintiffs,

04 Civ. 9308 (BSJ)(DF)

-against-

**AMENDED COMPLAINT
AND
JURY DEMAND**

CITY OF NEW YORK, JOSEPH AGRESTA,
LOURON HALL, BRIAN MCSWEENEY, JOSEPH
LESSARD, ULYSSES DADACAY, REGINA
MIRANDA, GABRIELA PARDO, MOHAMED DEEN,
SERGEANT JOHN DOE and POLICE OFFICERS
JOHN/JANE DOE and RICHARD ROE (names
and number of whom are unknown at
present) and other unidentified
members of the New York City Police
Department,

Defendants.

-----X

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

2. Plaintiffs were falsely arrested and charged with obstruction of governmental administration in the second degree, resisting arrest, and disorderly conduct. Defendants deprived plaintiffs of their constitutional and common law rights when they caused the unjustifiable arrest of plaintiffs, unlawfully confined plaintiffs, strip-searched plaintiff Barron, subjected plaintiffs to excessive force, and maliciously prosecuted plaintiffs.

JURISDICTION

3. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

4. The plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

5. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and ©) and § 1402 (b) because the claims arose in this district and plaintiff resides in this district.

PARTIES

6. Plaintiff Larhonda Barron is a resident of the County of New York, State of New York. Ms. Barron is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, State of New York.

7. Plaintiff Rodney Hunter is currently a resident of Chicago, Illinois. Mr. Hunter is a citizen of the United States, and was at all times relevant herein a resident of the City of New

York, State of New York.

8. New York City Police Officers Joseph Agresta, Louron Hall, Brian McSweeney, Joseph Lessard, Ulysses Dadacay, Regina Miranda, Gabriela Pardo, Mohamed Dean, Sergeant John Doe and police officers John/Jane Doe and Richard Roe are and were at all times relevant herein officers, employees and agents of the New York City Police Department. The individual defendants are being sued in their individual capacities as well.

9. On the date of the incident, August 26, 2003, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

10. The individual defendants were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately

responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

NOTICE OF CLAIM

12. Within 90 days of the occurrence of this incident, plaintiff Larhonda Barron filed written Notice of Claim with the City of New York. This matter has not been settled or otherwise disposed of.

STATEMENT OF FACTS

13. On August 26, 2003, the plaintiff Larhonda Barron was arrested by defendants and charged with obstruction of governmental administration, resisting arrest, and disorderly conduct.

14. On August 26, 2003, the plaintiff Rodney Hunter was arrested by defendants and charged with disorderly conduct.

15. On August 26, 2003, defendants maliciously, and with intent to injure plaintiffs, forcibly compelled the plaintiffs to go to the Precincthouse in the County and City of New York, imprisoned and detained them there, restrained them of their liberty, without any right to do so, and against the will of the plaintiffs.

16. At no time did either plaintiff offer resistance as the police officers assaulted and arrested the plaintiffs.

17. The arrest of plaintiffs was committed by the defendants

without a warrant or other legal process, without probable cause and without making a proper complaint.

18. Plaintiff Barron was subject to a unlawful strip search by defendants in the precinct house.

19. Plaintiff Hunter was repeatedly subject to blows to his back and groin area, and was repeatedly slammed by defendants onto a hood of a parked car. Plaintiff Hunter did neither resist nor assault any of the defendants.

20. Plaintiff Barron remained in custody and jail from August 26, 2003 to August 27, 2003.

21. Plaintiff Hunter remained in custody and jail for a period of a few hours on August 26, 2003.

22. The charges against plaintiff Barron were dismissed by the criminal court.

23. The charges against plaintiff Hunter were dismissed by the criminal court.

24. Defendants acted maliciously and intentionally.

25. As a direct and proximate result of the acts of defendants, plaintiffs suffered severe and permanent injuries including, but not limited to, physical injury, embarrassment, humiliation, loss of liberty, loss of income, psychological injury, pain, suffering, emotional distress and mental anguish.

FIRST CAUSE OF ACTION

(FOURTH AND FOURTEENTH AMENDMENT RIGHTS VIOLATION - Both Plaintiffs Barron and Hunter)

26. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.

27. Defendants, who were acting in concert and within the scope of their authority, arrested and caused plaintiffs to be imprisoned without probable cause in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

28. Plaintiffs were each damaged as a result of the defendant's conduct.

SECOND CAUSE OF ACTION

(ASSAULT - State Law, Plaintiff Barron Only)

29. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. Upon approaching the plaintiff Barron and arresting her, defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

31. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

32. Plaintiff Barron was damaged by the assault committed by the defendants.

THIRD CAUSE OF ACTION
(ASSAULT - 42 U.S.C. Section 1983; Both
Plaintiffs Barron and Hunter)

33. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. Upon approaching the plaintiffs and arresting them, defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

35. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 U.S.C. Section 1983 and 1985.

36. Plaintiffs were each damaged by the assault by defendants.

FOURTH CAUSE OF ACTION
(BATTERY - State Law, Plaintiff Barron Only)

37. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length

herein.

38. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff Barron at the time of the arrest, and the time when they, in a hostile and/or offensive manner caused plaintiff Barron to be stripped searched without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

39. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

40. Plaintiff Barron was damaged by the battery of the defendants.

FIFTH CAUSE OF ACTION
(BATTERY - 42 U.S.C. Section 1983,
Plaintiffs Barron and Hunter)

41. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiffs at the time of their arrests, respectively, including when they repeatedly struck plaintiff Hunter in the back and groin area and repeatedly

slammed him on the hood of a parked car, and the time when they, in a hostile and/or offensive manner caused the plaintiff Barron to be stripped searched without plaintiff Barron's consent, and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.

43. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 U.S.C. Section 1983 and 1985.

44. Plaintiffs were each damaged by the battery of the defendants.

SIXTH CAUSE OF ACTION
(FOURTH AMENDMENT RIGHT AGAINST STRIP SEARCH
- Plaintiff Barron Only)

45. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The strip search of plaintiff Barron was conducted without probable cause by defendants who were acting in concert and within the scope of their authority, and the search was an objectively unreasonable search and seizure of plaintiff Barron in violation of her right to be free of an unreasonable search and seizure under the Fourth Amendment to the Constitution of the United States.

47. Plaintiff Barron was damaged by the strip search and seizure by the defendants.

SEVENTH CAUSE OF ACTION
(FOURTH AMENDMENT EXCESSIVE FORCE VIOLATION
- Plaintiff Hunter Only)

48. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously subjected plaintiff Hunter to excessive force when they, in a hostile and/or offensive manner caused the plaintiff Barron to be repeatedly battered, struck, and slammed onto the hood of parked car without any provocation, cause, or resistance from plaintiff Hunter with the intention of causing harmful and/or offensive bodily injury to plaintiff Hunter and caused such injury in violation of his right to be free of an unreasonable search and seizure under the Fourth Amendment to the Constitution of the United States.

50. Plaintiff Hunter was damaged by the excessive force of the defendants.

EIGHTH CAUSE OF ACTION
(FALSE ARREST - State Law, Plaintiff Barron Only)

51. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 50 with

the same force and effect as if more fully set forth at length herein.

52. Defendants subjected plaintiff Barron to false arrest, imprisonment, and deprivation of liberty without probable cause.

53. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

54. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged.

NINTH CAUSE OF ACTION
(FALSE ARREST - 42 U.S.C. Section 1983,
Plaintiffs Barron and Hunter)

55. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants subjected plaintiffs to false arrest, imprisonment, and deprivation of liberty without probable cause.

57. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 U.S.C. Section 1983 and 1985.

58. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged.

TENTH CAUSE OF ACTION

(MALICIOUS PROSECUTION - State Law, Plaintiff Barron Only)

59. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Defendants, acting with actual malice and without probable cause, caused false criminal accusatory instrument to be filed against plaintiff Barron.

61. The criminal instrument was dismissed and the criminal proceedings favorably terminated.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

64. Plaintiff Barron was damaged as a result of the malicious prosecution.

ELEVENTH CAUSE OF ACTION

(MALICIOUS PROSECUTION - 42 U.S.C. Section 1983,
Both Plaintiffs Barron and Hunter)

65. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Defendants, acting with actual malice and without probable cause, caused false criminal accusatory instrument to be filed against the plaintiffs.

67. Each criminal instrument was dismissed and the criminal proceedings favorably terminated on behalf of both plaintiffs.

68. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 U.S.C. Section 1983 and 1985.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. Plaintiffs were each damaged as a result of the malicious prosecution implemented by the defendants.

TWELFTH CAUSE OF ACTION
(MUNICIPAL LIABILITY and NEGLIGENT HIRING, RETENTION, AND
SUPERVISION)

71. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. Defendant City of New York is liable for the damages suffered by the plaintiffs as a result of the conduct of its employees, agents and servants.

73. Defendant City of New York knew or should have known of its employees', agents' or servants' propensity to engage in the illegal and wrongful acts detailed above.

74. Upon information and belief, defendant police officers have in the past engaged in unlawful and unconstitutional conduct.

75. Defendant City of New York has failed to take the steps to discipline, train, supervise, or otherwise correct the improper, illegal conduct of the defendants in this and in similar cases involving misconduct.

76. Defendant City of New York has damaged the plaintiffs by its failure to properly supervise, hire, train, discipline, review, remove, or correct the illegal and improper acts of its employees, agents or servants in this and in similar cases involving misconduct.

77. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

78. As a result of the wrongful acts of the defendant City of New York, plaintiffs have been damaged.

JURY DEMAND

79. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs pray for relief as follows:

A. That the jury find and the Court adjudge and decree that each plaintiff shall recover compensatory damages in the sum of one million dollars, against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of one million dollars against the individual defendants, jointly and severally.

B. That the plaintiffs recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. §1988.

C. That the plaintiffs have such other and further relief as the Court shall deem just and proper.

DATED: April 21, 2005
New York, New York

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Docket No. 04 Civ. 9308 (BSJ)(DF)

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Plaintiffs,

-against-

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JOHN/JANE DOE and RICHARD ROE (names
and number of whom are unknown at
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members of the New York City Police
Department,

Defendants.

AMENDED COMPLAINT AND JURY DEMAND

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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LARHONDA BARRON and RODNEY HUNTER,

Plaintiffs,

04 Civ. 9308(BSJ)(DF)

-against-

AFFIRMATION OF SERVICE

CITY OF NEW YORK, JOSEPH AGRESTA,
LOURON HALL, BRIAN MCSWEENEY, JOSEPH
LESSARD, ULYSSES DADACAY, REGINA
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SERGEANT JOHN DOE and POLICE OFFICERS
JOHN/JANE DOE and RICHARD ROE (names
and number of whom are unknown at
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-----X

I, S. Tito Sinha, being duly sworn, deposes and says:

That deponent is not a party to the action, is over 18 years
of age and resides in New Hyde Park, New York.

On April 21, 2005 deponent served the within Plaintiffs'
Amended Complaint and Jury Demand by depositing a true copy thereof
enclosed in a post-paid wrapper, in an official depository under
the exclusive care and custody of the U.S. Postal Service within
New York State, addressed to each the offices at the last known
address set forth after each name:

Vivian Najib, Esq.
Assistant Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

/s/
